FIELD GUIDE 01 · BUSINESS & ENTREPRENEURSHIP

EB-1A

for Business Leaders

THE FOUNDER'S EVIDENCE BLUEPRINT

A premium guide for entrepreneurs, executives, and senior professionals building a self-petitioned extraordinary ability case

AiVass

Published by AiVass LLC

PURPOSE. PROOF. PERMANENCE.

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Before You Begin

Legal disclaimer — please read

This guide is an educational and strategic information product. It explains the EB-1A classification using publicly available government sources current as of July 2026. It is not legal advice, it does not address your individual circumstances, it does not create an attorney-client relationship, and it is not a substitute for advice from a licensed U.S. immigration attorney.

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WHERE THIS GUIDE SITS

This is a **field guide** — it assumes you have read, or will read, the **AiVass EB-1A Master Guide**, which covers the full legal framework and all ten criteria in general terms. Chapter 2 here restates the essentials so this guide stands alone, but the Master Guide is the foundation. Everything that follows is business-specific: how a commercial career — not an academic one — becomes a top-of-field evidentiary record.

How to Use This Guide

Three reader lanes run through every chapter. Read the one that matches where you are today — then come back for the next.

- **Beginner — "Do I even qualify?"** Chapters 1–3 and the self-assessment in Chapter 12. You will leave with an honest verdict and a build list.
- **Advanced — "How do I make my case undeniable?"** Chapters 4–9. Criterion mechanics, quantification, comparable evidence, and the 90/180-day sprint.
- **Expert / B2B — "How do we run this at volume?"** Chapter 11. Intake questionnaire, criteria matrix, exhibit index, QC checklist — for attorneys, paralegals, and in-house mobility teams.

THE THREE BOXES

Straight from the source

Blue boxes carry the controlling authority — statute, regulation, or the USCIS Policy Manual — so you always know what is law and what is strategy.

Strategy note

Gold boxes carry AiVass strategy: how strong business cases are actually positioned, and where weak ones fall apart.

The bottom line

Navy boxes distill the chapter into the one thing to remember.

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CHAPTER

01

Why EB-1A Fits a Business Career

And why USCIS was not thinking about you when it wrote the rules.

The ten EB-1A criteria read like they were drafted for a tenured physicist. Scholarly articles. Artistic exhibitions. Judging the work of others. A founder scanning that list for the first time usually concludes the category was not built for business — and then never files.

That conclusion is wrong, and expensively so. **Business is one of the five statutory fields** named in INA § 203(b)(1)(A) — alongside the sciences, arts, education, and athletics. Nothing in the law ranks them. And the current USCIS Policy Manual now speaks directly to commercial careers: it treats **significant funding from government, venture capital, or angel investors** as a positive factor establishing an organization's distinguished reputation, and it names **highly valued startup equity** as evidence comparable to a high salary. The agency knows founders exist. Most petitions simply fail to speak its language.

What you get — and what it costs

- **Self-petition.** You file your own Form I-140. No employer, no sponsor, no dependence on the company that currently holds your visa.
- **No job offer.** The Policy Manual is explicit: an EB-1A petition "does not need to be supported by a job offer."
- **No PERM.** No labor-market test, no recruitment, no eighteen-month DOL detour.
- **First in line.** EB-1 is the first employment-based preference — current for most countries, with premium processing available.
- **The price.** A higher evidentiary bar than any other employment category, and a final-merits review that punishes vague, unquantified achievement. That is the whole trade.

The bottom line

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EB-1A does not ask you to be a scientist. It asks you to prove — in numbers, from independent sources — that you sit among the small percentage at the very top of a field you can define.

Who this guide is for

- Founders and co-founders of funded companies — pre-seed through late stage.
- C-suite and VP-level executives at companies (or divisions) with documentable reputation.
- Senior operators below the C-suite whose work drove outcomes the company would not have reached without them.
- Consultants, investors, and independent professionals whose methods or portfolios have measurable field-level impact.
- Business-side professionals in product, growth, finance, operations, and strategy.

Who it is not for — yet

If your achievements are excellent but internal — strong performance reviews, promotions, revenue you helped generate inside one company — you are not disqualified; you are **early**. Chapter 9 gives you a build plan. The most expensive mistake in this category is filing before the evidence exists.

Strategy note — the honest reframe

Business petitions do not fail because business is a weaker field. They fail because commercial achievement is normally measured in private: internal dashboards, confidential revenue, non-public deals. Your job across this guide is to convert private excellence into public, third-party-verifiable proof.

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CHAPTER
02

The Standard in Plain English

Three prongs, one definition, two steps.

This chapter compresses the Master Guide's legal framework into what a business petitioner must hold in working memory. Everything here traces to the statute, 8 C.F.R. § 204.5(h), or the USCIS Policy Manual, Volume 6, Part F, Chapter 2 — verified July 2026.

The three prongs

> **Straight from the source**
>
> 1. Extraordinary ability in business, demonstrated by **sustained national or international acclaim**, with achievements recognized through extensive documentation.
> 2. Intent to **continue working in your area of extraordinary ability** in the United States.
> 3. Your entry will **substantially benefit the United States** in the future.
>
> *— INA § 203(b)(1)(A); USCIS Policy Manual, Vol. 6, Pt. F, Ch. 2*

The definition that decides everything

> **Straight from the source**
>
> Extraordinary ability means "a level of expertise indicating that the individual is **one of that small percentage who have risen to the very top of the field of endeavor**." — 8 C.F.R. § 204.5(h)(2)

Note what the definition does **not** say. It does not say "most successful company." It does not say "largest exit." It says **top of the field** — and the field is one you will define in Chapter 4. A founder of a $40M-ARR vertical SaaS company can be top-of-field. So can a supply-chain executive whose method three competitors adopted. Revenue is evidence; it is not the standard.

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Two pathways in

- **Pathway A — one-time achievement.** A major, internationally recognized award (the regulation's example is the Nobel Prize). Almost no business petition travels this road, and there is no comparable-evidence substitute for it.
- **Pathway B — three of ten criteria.** Your road. Meet at least three of the regulatory criteria — or evidence properly argued as comparable to them.

Then: the two-step test

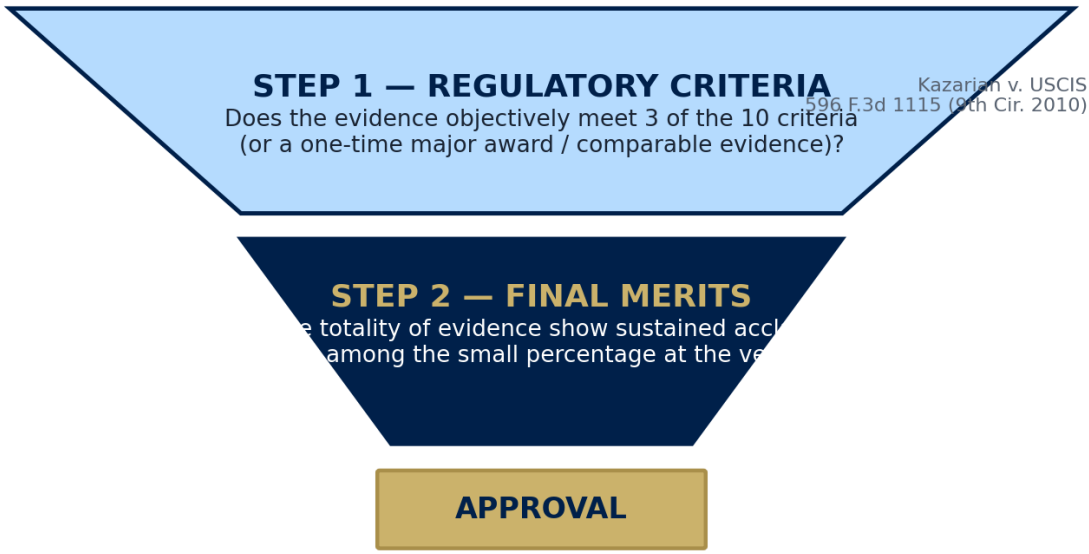


Figure 2.1 — The Kazarian two-step analysis, applied to every petition.

Step 1 is mechanical: do your documents objectively meet three criteria? Step 2 is the verdict: weighing **everything together** — including evidence that fits no criterion — are you in the small percentage at the very top? The Manual is blunt that meeting three criteria **"alone does not establish"** eligibility. Most denials happen here, at Step 2, which is why Chapter 8 exists.

Three quiet rules that shape business cases

- **Sustained means maintained.** Officers ask whether you still hold a comparable level of acclaim. Build for the last 24 months.
- **Volume is not persuasion.** The Manual warns that "voluminous documentation may not contain sufficient persuasive evidence." Curate.

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- **Letters are not the cornerstone.** Witness statements "should not form the cornerstone" of the claim and must be corroborated by documents. Build the documents first.

The bottom line

Three prongs. One definition. Two steps. Everything else in this guide is the work of converting a commercial career into evidence that satisfies them.

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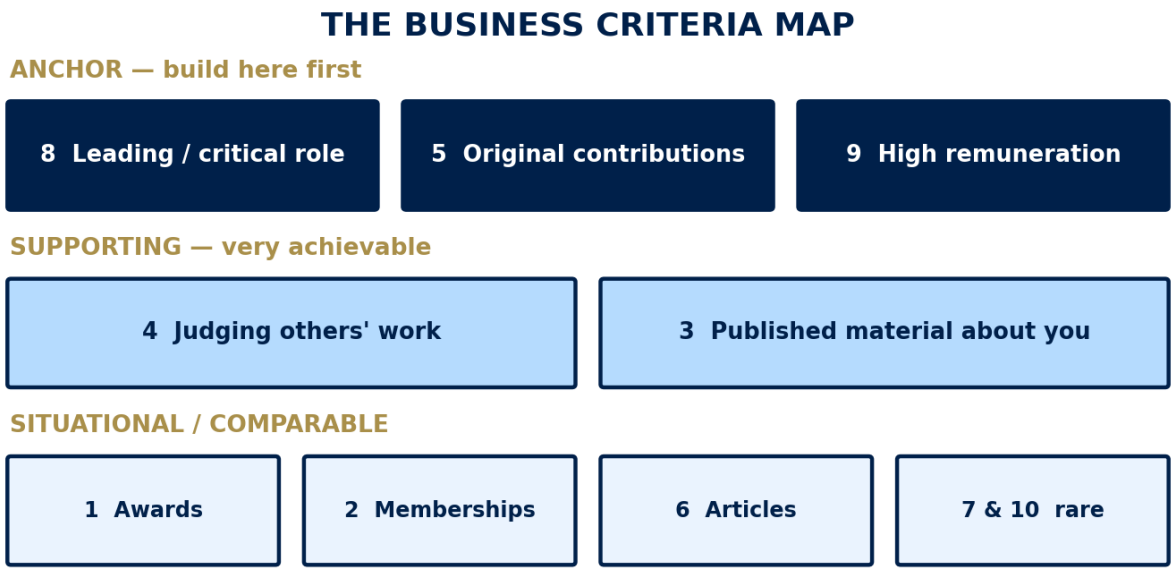
CHAPTER

03

The Business Criteria Map

Where your case actually gets built.

Ten criteria exist. For a business profile, they are not equal — not remotely. Three carry most approved petitions, two more are highly achievable with deliberate effort, and the rest are situational or require the comparable-evidence bridge. Knowing which is which saves months.



Most approved business cases claim 4–6 criteria. Three is the legal floor, not the target.

Figure 3.1 — The Business Criteria Map. Anchor first, support second, situational last.

The three anchors

- **Criterion 8 — leading or critical role.** The single most important criterion in a business case. It has two prongs (leading OR critical), it can be satisfied at the level of a division or department, and

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USCIS names venture funding as a factor establishing distinguished reputation. Chapter 5 is devoted to it.

- **Criterion 5 — original contributions of major significance.** Where "business-related contributions" lives — a phrase written into the regulation itself. Also the most-RFE'd criterion in the entire category. Chapter 6.
- **Criterion 9 — high remuneration.** A math criterion, decided by benchmarking. Founders can use prospective compensation and equity. Chapter 7.

The two supports

- **Criterion 4 — judging the work of others.** The most buildable criterion in the book. Pitch-competition juries, accelerator selection panels, industry award committees, journal review. Add it in 90 days.
- **Criterion 3 — published material about you.** Not your company — you, and your work. Trade press and ranked podcasts count when documented properly.

The situationals

- **Criteria 1 & 2 — awards and memberships.** Usable when genuinely selective and expert-judged. Fatal when purchased. Chapter 8 includes the pay-to-play detector.
- **Criterion 6 — scholarly articles.** Rarely direct — but a major trade-show presentation is USCIS's own example of evidence comparable to this criterion for an industry professional.
- **Criteria 7 & 10 — exhibitions and performing-arts commercial success.** Essentially never applicable. Since October 2024, trade shows and product demos are expressly not "artistic exhibitions." Do not claim Criterion 7 with a CES booth.

> **Strategy note — the 4–6 rule**
>
> Three criteria is the legal floor. Approved business petitions typically evidence four to six, with at least two anchors carrying real weight. If your plan is "three criteria, one of them thin," you are planning an RFE.

Your first pass

Before you read further, mark each criterion with one symbol. Be an officer, not an optimist: if the document is not in your folder, it does not exist.

Criterion	✓ Have it	⚠️ Partial	✗ No
8 — Leading / critical role			

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Criterion	✓ Have it	⚠️ Partial	✗ No
5 — Original contributions			
9 — High remuneration			
4 — Judging others' work			
3 — Published material about me			
1 — Awards			
2 — Memberships			
6 — Articles / trade-show equivalent			

The bottom line

Anchor on 8, 5, and 9. Support with 4 and 3. Treat everything else as upside. That is the shape of nearly every approved business petition.

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CHAPTER

04

Defining Your Field of Endeavor

Top of what, exactly?

"Field of endeavor" is the denominator of your entire case. Get it wrong and the arithmetic never works. Define it as **"business"** and you are claiming to be among the top few percent of everyone in commerce — indefensible. Define it as **"B2B pricing software for Nordic cold-chain logistics"** and an officer may reasonably find the peer group manufactured. The target is precise, honest, and stable.

The formula

> **The AiVass field formula**
>
> **[Methodology or discipline] + [application domain] + [scale or market context]**

WORKED EXAMPLES

Too broad	Defensible	Too narrow
Business	Growth strategy and go-to-market leadership in enterprise SaaS	Series-B PLG onboarding funnels for HR-tech in DACH
Technology	Product leadership in AI-enabled financial infrastructure	Fraud-model tuning for one payment processor
Finance	Quantitative credit-risk strategy in emerging-market lending	Loan-loss provisioning for two Nigerian banks
Operations	Supply-chain design and logistics optimization at global scale	Cold-chain routing for a single grocery client
Consulting	Organizational transformation for post-merger integration	PMI change management in Baltic insurance

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Four tests for your definition

1. **The peer test.** Can you name, concretely, the people who make up the top few percent of this field — their titles, their companies, their credentials? If you cannot name them, an officer cannot either.
2. **The stability test.** Does one sentence hold your whole career arc — early work, current work, and intended U.S. work? If your definition excludes your own past, narrow it differently.
3. **The verbatim test.** Will you repeat this exact phrase in the cover letter, every criterion section, the final-merits argument, and every recommendation letter brief? Consistency is credibility.
4. **The stress test.** If an officer widened or narrowed your field by one notch, would your evidence still fit? Document one fallback definition before you file.

The founder's special problem

Founders wear four hats: the domain (fintech), the function (product), the craft (entrepreneurship), and the outcome (the company). Only two make defensible fields. Anchor on **domain + function** — "product leadership in AI-enabled financial infrastructure." Do not make **"entrepreneurship"** your field: it invites a peer group of every founder alive, and it detaches your acclaim from any measurable discipline. And never make **the company** your field — the company is evidence, not identity. The petition is about you.

The intent connection

Your field definition must also support Prong 2 — continuing to work in the **area of your extraordinary ability**. If your acclaim is in supply-chain design and your U.S. plan is to launch a beverage brand, an officer will notice. Where a pivot is real, argue continuity of the underlying discipline explicitly, and document it: contracts, advisory roles, a business plan that puts the discipline at the center.

> **The bottom line**
>
> Write your field of endeavor in one sentence today. Everything you build for the next six months must sit inside it.

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CHAPTER

05

Criterion 8 Masterclass

Leading or critical role — the anchor of the business petition.

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(viii)**
>
> *"Evidence that the alien has performed in a leading or critical role for organizations or establishments that have a distinguished reputation."*

Two elements, and both must be proven. First, a **leading OR critical** role — for an organization **or a division or department of one**. Second, that organization or division must have a **distinguished reputation** — "marked by eminence, distinction, or excellence." Miss either and the criterion fails, no matter how impressive your title.

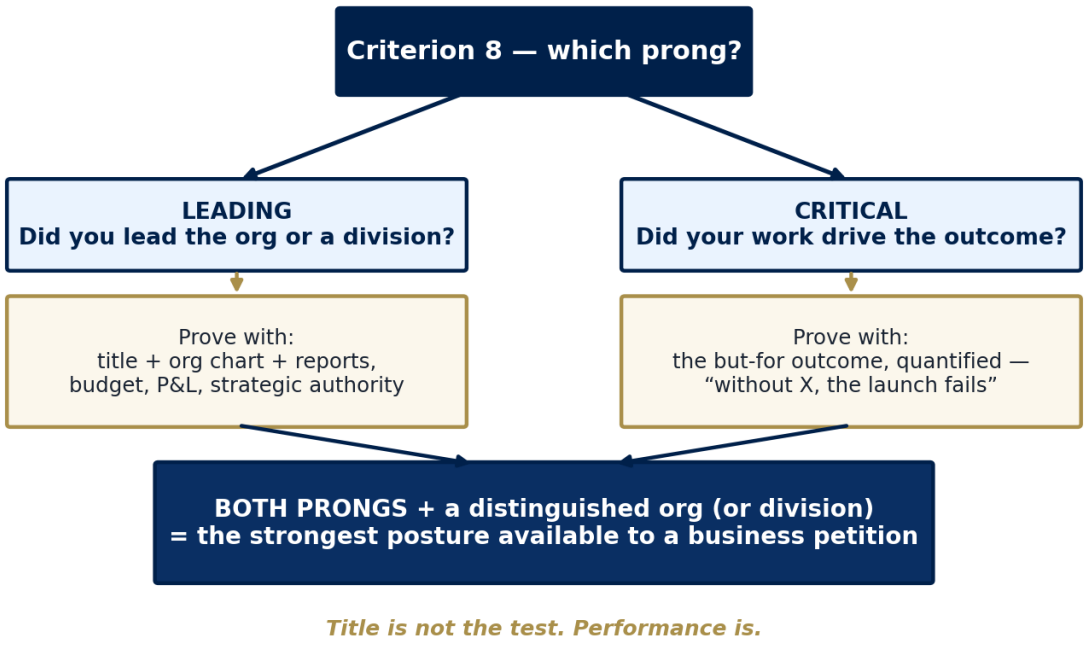


Figure 5.1 — Two prongs, two evidence sets. Claim both when the facts allow.

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The leading prong

"Leading" means evidenced leadership within the entity. A matching title helps, but the Manual looks at **duties**. Prove scope, not seniority:

- Org chart placing you, with the reporting lines above and below.
- Headcount under your authority — direct and indirect.
- Budget or P&L ownership, in dollars.
- Decision rights: what you could approve without escalation.
- Duration and continuity of the role.

The critical prong

"Critical" is about **performance of significant importance to the outcome** of the entity's activities. The Manual is emphatic that a supporting role can be critical — **it is the performance, not the title, that decides**. This is how a Head of Growth, a principal engineer, or a division CFO wins Criterion 8 without a C-suite card.

THE BUT-FOR SENTENCE

> **Strategy note — write it before you write anything else**
>
> **"Without [your name]'s [specific work], [organization] would not have [specific outcome], worth [number]."**
>
> *"Without Ms. Oduya's pricing architecture, Northwind would not have entered the enterprise segment, which now represents $18.4M of $31M ARR — 59% of company revenue."*
>
> If you cannot write that sentence with a number in it, you do not yet have the critical prong. You have a job description.

The distinguished-reputation problem

This is where most business petitions actually lose Criterion 8 — not on the role, on the **organization**. Your employer is obvious to you and invisible to an officer in Nebraska. Build a third-party dossier. The Manual names these factors:

- **Size and longevity —** relevant, but explicitly not decisive. A three-year-old startup is not disqualified.
- **Customer base and scale —** users, clients, market share, transaction volume.
- **Media coverage —** independent press about the organization.

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- **Rankings —** industry league tables, "fastest-growing" lists with methodology, analyst placements.
- **Startups: significant funding** from government, venture capital, or angel investors, commensurate with the stage and industry — named by USCIS as a positive factor.

THE DIVISION PATHWAY

Work at a large but unremarkable company? Or at a famous company in an obscure corner? Use the **division or department** route the regulation permits. Establish the reputation of **the unit you actually led** — its revenue, its market position, its press, its awards — and then your leading or critical role within it. Conversely, do not borrow a famous parent company's glow while your evidence describes a team of four: officers read that gap immediately.

Employer letters — the regulatory requirement people miss

Evidence of experience must consist of **letters from employers** (8 C.F.R. § 204.5(g)(1)). For Criterion 8, these letters do the heavy lifting — and they must be specific.

WHAT A STRONG EMPLOYER LETTER CONTAINS

1. The writer's identity, title, tenure, and basis of personal knowledge of your work.
2. The organization's or division's standing, with numbers (revenue, users, funding, ranking).
3. Your exact role, dates, scope: reports, budget, decision authority.
4. One to three specific outcomes, each with a metric and a but-for connection to you.
5. A closing characterization in the criterion's own language: "leading role," "critical to the outcome," "distinguished reputation."

> **Strategy note — never write the letter**
>
> Brief your writers with a one-page memo: the two criteria this letter should address, the metrics to cite, the documents attached. Then let them write in their own voice. Identical phrasing across letters is detectable, and the Policy Manual instructs officers that expansive, definition-reciting letters "are generally not persuasive."

Criterion 8 self-check

- ☐ A third-party reputation dossier exists for my organization — or specifically for my division.
- ☐ For startups: funding rounds, investors, and amounts are documented with independent sources.
- ☐ My authority is quantified — reports, budget, decision rights, duration.
- ☐ I have written the but-for sentence, and it contains a number.

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- ☐ My employer letters are on letterhead, signed, specific, and written in different voices.
- ☐ I claim both prongs where the facts support both.

RFE radar

Two predictable challenges: "the organization has not been shown to have a distinguished reputation," and "the role has not been shown to be leading or critical." Both are evidence problems, not argument problems. Over-invest here — Criterion 8 sets the tone an officer carries through the rest of your petition.

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CHAPTER

06

Criterion 5 Masterclass

Original business-related contributions of major significance.

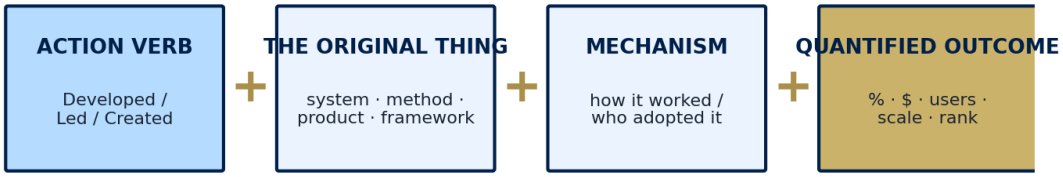
> **In the regulation — 8 C.F.R. § 204.5(h)(3)(v)**
>
> *"Evidence of the alien's original scientific, scholarly, artistic, athletic, or business-related contributions of major significance in the field."*

Read that phrase again: **business-related contributions** — written into the regulation. This criterion was built for you. It is also the criterion that generates more Requests for Evidence than any other, for one reason: petitioners prove **original** and forget to prove **major significance**.

Two elements, separately proven

- **Original.** The thing did not exist before you made it. A method, a framework, a product, an architecture, a market category.
- **Of major significance to the field.** The field — not your employer, however large. The Manual states that funding, patents, or publication may prove originality but "will not necessarily establish, on its own" major significance.

The quantification formula



"Developed a trial-recruitment algorithm → adopted across 4 Phase III trials → cut enrollment time 23%, saving ≈ $4.2M."

Figure 6.1 — If a sentence has no number, it is not evidence yet.

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BEFORE AND AFTER

Résumé language (fails)	Evidence language (works)
"Significantly improved operational efficiency."	"Designed a demand-forecasting method that cut stockouts 31% across 4 retail chains (2,100 stores), reducing carrying cost by ≈$6.8M annually — documented in Exhibit 5.2 adoption letters."
"Built a market-leading product."	"Created the first API-native payroll layer for LATAM contractors; now processes $220M/yr for 1,400 companies and is referenced as a category benchmark in two analyst reports (Exhibits 5.4–5.5)."
"Recognized thought leader in pricing."	"Authored the usage-based pricing framework taught in [University]'s MBA elective and adopted by 9 SaaS companies with combined ARR of $480M (Exhibits 5.7–5.9)."

Proving significance — the four evidence types

1. **Adoption beyond your employer.** Other companies, an industry body, a standards group, a curriculum. Named adopters with letters, contracts, or public statements.
2. **Independent commentary.** Analysts, journalists, or recognized practitioners describing the importance of the work — not of you.
3. **Commercialization and scale.** Revenue attributable to the contribution, licensing, users, transaction volume — with a source document for every figure.
4. **Corroborated expert testimony.** Letters that describe the contribution, its significance, and the writer's basis of knowledge — each claim matched to a document already in the file.

The Significance Map

Build one page per contribution. Officers should never have to assemble your argument themselves.

Artifact	Adopters	Metrics	Independent commentary	Exhibit
What you created	Who outside your firm uses it	% · $ · users · scale	Who said it mattered, publicly	5.x

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Patents, IP, and the confidentiality problem

- **Patents.** Grant proves originality. Significance needs citation by other patents, licensing, commercialization, or attention. Pending applications need detailed corroborating reference letters.
- **Trade secrets and NDAs.** A real constraint in business cases. Solutions: aggregate metrics rather than client names; redacted contracts; letters from counterparties confirming scale without disclosing terms; third-party analyst coverage.
- **Open source.** Adoption metrics — dependents, downloads, forks, corporate users — are among the cleanest significance evidence a business petitioner can file.

RFE radar

The classic denial concedes originality and rejects major significance: "the record does not establish that the beneficiary's contributions have been of major significance in the field as a whole." Preempt it. Every contribution gets a Significance Map, and every metric gets a source document.

The bottom line

Originality is what you made. Major significance is what the field did with it. Only the second one wins Criterion 5.

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CHAPTER

07

Criterion 9 & the Comparable-Evidence Bridge

Compensation, equity, and the founder's workaround.

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(ix)**
>
> *"Evidence that the alien has commanded a high salary or other significantly high remuneration for services, in relation to others in the field."*

It is a benchmarking exercise, not a bragging exercise

The number alone means nothing. What matters is where it sits **relative to others in your field**, in your market, at your level. Two clarifications in the current Manual are unusually generous:

- **"Has commanded" does not require money already banked.** A credible signed contract or job offer showing prospective compensation can qualify.
- **Founder-specific.** Significant funding is weighed when judging the credibility of prospective-compensation evidence — and highly valued startup equity may be argued as evidence comparable to this criterion.

The four-step benchmark

1. Fix your comparator: same occupation, same geography, same seniority. Mismatched geography is the single most common self-inflicted error under this criterion.
2. Pull the distribution: government wage data for your occupation code, plus a reputable industry compensation survey. File the methodology, not a screenshot.
3. Compute your placement. Target documented top ~10% (90th percentile or above).

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4. Assemble total compensation: base + bonus + equity, each with a supporting document (offer letter, grant agreement, 409A or round valuation, tax records).

> **Strategy note — when to skip Criterion 9**
>
> If your pay is high locally but ordinary against the right national comparator, filing this criterion can cost more than it adds: it invites an officer to write a paragraph about how you are not exceptional. Three strong criteria beat four with a soft one. Decide deliberately.

The comparable-evidence bridge

> **In the regulation — 8 C.F.R. § 204.5(h)(4)**
>
> *"If the above standards do not readily apply to the beneficiary's occupation, the petitioner may submit comparable evidence to establish the beneficiary's eligibility."*

"Readily" means **easily**. A criterion need not be entirely inapplicable to your occupation — only not easily applicable. A detailed, specific, credible statement from you can establish that; a generic assertion cannot. And USCIS supplies the two examples founders need most:

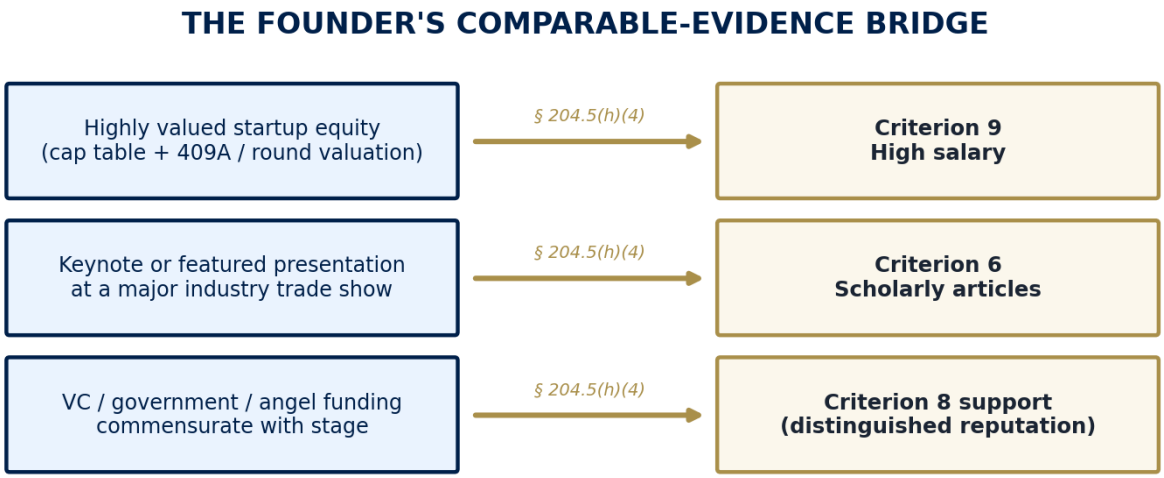


Figure 7.1 — The founder's comparable-evidence bridge, built on the Policy Manual's own examples.

The four-move drafting pattern

1. Name the criterion you are substituting for. Be specific — "Criterion 6, scholarly articles."
2. Prove why your occupation cannot easily produce that evidence, with support: industry norms, the absence of peer-reviewed venues in commercial practice, confidentiality obligations.

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3. Present the substitute evidence in full.
4. Argue equivalence of significance — not similarity of form. A keynote at a 12,000-attendee industry conference reaches the field's learned practitioners the way a journal article reaches researchers.

> **RFE radar**
>
> Officers reject comparable evidence when the listed criterion plainly applied. Do not claim scholarly articles "don't apply" if you have published any. And remember: there is no comparable evidence for the one-time-achievement pathway.

Equity: how to value it credibly

- Cap table extract or grant agreement showing your holding and vesting.
- A defensible valuation: most recent priced round, 409A, or an independent valuation report — dated.
- Your holding × valuation, computed transparently, with the assumptions stated.
- Context: how founder equity at your stage compares to compensation norms for equivalent roles.

> **The bottom line**
>
> Criterion 9 is arithmetic with sources. The bridge exists precisely because founders take equity instead of salary and stages instead of journals — but you must argue the bridge, not assume it.

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CHAPTER

08

Supporting Criteria — Judging, Media, Awards & Memberships

The buildable ones, and the ones that can hurt you.

Criterion 4 — judging the work of others

The most buildable criterion in EB-1A, and the one business petitioners most often ignore. The test: you participated, individually or on a panel, as a judge of others' work in the same or an allied field — and you can prove you **actually completed** the judging, not merely that you were invited.

WHERE BUSINESS PEOPLE FIND LEGITIMATE JUDGING

- Juror at national or international startup competitions, pitch finals, and accelerator selection days.
- Judge for industry association awards — with the selection panel documented.
- Business-plan competition juries at recognized universities.
- Peer reviewer for management or trade journals.
- Grant or fund selection committees; investment committees evaluating external submissions.

WHAT TO KEEP, EVERY TIME

- ☐ The invitation (email or letter) naming you as judge.
- ☐ Proof of completion: a thank-you, a scoring sheet, a published jury list, a certificate.
- ☐ A prestige packet: the competition's scale, applicant volume, sponsors, and co-judges.
- ☐ A cumulative table — venue, year, number of submissions evaluated.

> **Strategy note**
>
> Judging of any caliber satisfies Step 1. At Step 2 the officer asks whether it reflects top-of-field standing. So judge things whose prestige you can prove, do it more than once, and present a table rather than three loose emails.

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Criterion 3 — published material about you

The trap in business cases: the coverage is about the **company**. The criterion requires material about **you, relating to your work** — though you need not be the sole subject. A broader article qualifies where it contains a substantial discussion of your work and names you in connection with it, and team-focused coverage counts when your significant role is documented.

Counts	Does not count
A trade-press feature analyzing your operating method, naming you	A funding-round announcement quoting you for one line
A profile in national business media discussing your leadership and results	A press release, or a wire syndication of one
A ranked-podcast interview, filed as a transcript with audience data	Your own LinkedIn posts, Medium essays, or company blog
A book chapter or analyst report substantially discussing your work	Any paid feature or advertorial — an integrity problem, not just a weak exhibit

For every item, file a one-page cover sheet: what the piece says about **your work**, plus the outlet's credentials — intended audience, circulation or readership, editorial independence. Officers do not know which trade publication leads your industry. Tell them, with data.

Criteria 1 & 2 — awards and memberships

Both can strengthen a business case. Both can wound it. The dividing line is simple: **was it earned through expert judgment, or purchased?**

THE PAY-TO-PLAY DETECTOR

- ☐ Did I, my employer, or a PR firm pay any fee to enter, be considered, or be listed?
- ☐ Are the selection criteria published, and are the judges named?
- ☐ Can I document the number of candidates versus winners?
- ☐ Does independent media cover the award itself — not just my receipt of it?
- ☐ For memberships: do the bylaws require outstanding achievement, judged by recognized experts — rather than dues, a degree, or years of experience?

If you answer "yes" to the first question, leave it out. Purchased recognition is a credibility risk that contaminates the exhibits around it. Two clarifications worth knowing: since October 2024 **team awards qualify** where you are an actual named recipient, and **past memberships count** at Step 1 (recency is weighed later, under sustained acclaim).

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The bottom line

Judging and media are the two criteria you can genuinely add in 90 days. Awards and memberships are the two that can quietly damage you. Build the first pair; audit the second.

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CHAPTER

09

Final Merits & the Evidence Sprint

From five checkmarks to one verdict — and how to get there in 180 days.

Winning Step 2

The officer has agreed you meet five criteria. Nothing is decided. Step 2 asks whether the **totality** shows sustained national or international acclaim and a place among the small percentage at the very top. Business petitions win Step 2 with four things: a defined peer group, comparatives, national scope, and a living trajectory.

THE FINAL-MERITS ARGUMENT, IN SEVEN MOVES

1. Restate the standard — the two-step framework and the "small percentage at the very top" definition.
2. Define the peer group concretely — the titles, companies, and credentials of the top few percent of your field.
3. Synthesize, do not repeat — weave the criteria into one arc: recognition → influence → standing.
4. Place yourself with comparatives — percentiles, rankings, adoption scale, rarity of the role.
5. Prove the acclaim is national or international — not organizational, not local.
6. Show the trajectory is alive — your last 24 months of recognition, named.
7. Land the U.S. benefit — jobs created, technology deployed, capital attracted, competitiveness gained.

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The recency audit



An officer asks: has this person maintained a comparable level of acclaim? Fill the gold band.

Figure 9.1 — "Sustained" is decided in the gold band. Audit it before you file.

List every documented recognition from the last 24 months: press, judging, speaking, awards, adoption milestones, funding events, membership elections. If the column is thin, do not file. **Build.**

The 30 / 90 / 180-day sprint

DAYS 0–30 — INVENTORY AND MAP

- Convert your CV into a criteria-tagged evidence list, one row per achievement.
- Collect everything you already control: tax records, offer letters, equity grants, org charts, award certificates, membership records, press links.
- Write your field of endeavor in one sentence (Chapter 4). Stress-test it.
- Score yourself with the Chapter 12 matrix. Identify your two anchor criteria and your two weakest.

DAYS 31–90 — BUILD AND REQUEST

- Apply to judge: two pitch competitions, one award panel, one journal or accelerator review. Keep the invitation and the completion proof.
- Pitch three trade publications with a specific, non-promotional story about your method — not your funding.
- Pursue the fellow-grade membership your industry body offers. Request the bylaws first.
- Commission the compensation benchmark; assemble your equity valuation package.
- Send letter-writer briefing memos with metrics attached, so nothing comes back generic.

DAYS 91–180 — PROVE AND ASSEMBLE

- Build the Significance Map for each contribution (Chapter 6).

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- Build the reputation dossier for your organization or division (Chapter 5).
- Collect 6–8 letters, weighted toward independent experts with no employment relationship to you.
- Assemble exhibits, numbered by criterion. Then professional review — then file.

Strategy note — the patience rule

The most expensive mistake in EB-1A is filing three months early. If you sit at two solid criteria and three maybes, a 90-day build converts maybes into exhibits. Denials cost more than patience — in money, in time, and in the record you carry into your next filing.

The bottom line

Step 1 is a checklist. Step 2 is a story with numbers in it. Give yourself 180 days and you will have both.

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CHAPTER

10

Filing, Fees & Timing

Mechanics, money, and the one variable you do not control.



Timelines vary by case, service center, and country of chargeability — always check the current Visa Bulletin.

Figure 10.1 — The EB-1A journey, end to end.

The filing

EB-1A runs on **Form I-140**. A standalone I-140 can be filed online; if you file premium processing or other forms together, file by mail. Approval sets your **priority date** — your place in line, which controls everything after.

Costs

> **Snapshot — fees as verified July 2026**
>
> **Form I-140 filing fee:** $715
>
> **Asylum Program Fee (paid with the I-140):** $600 standard · $300 for small employers (25 or fewer full-time-equivalent employees — the bracket most individual self-petitioners fall into) · $0 for nonprofits. Paying the wrong tier causes rejection at intake.

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Premium processing (Form I-907, optional): 15-business-day adjudication window; a fee adjustment applies to filings postmarked on or after March 1, 2026 — currently $2,965 for the I-140.

Payment method: USCIS has moved away from paper checks and money orders for mailed filings — pay by card (G-1450) or ACH (G-1650) unless exempt.

Fees change. Confirm at uscis.gov/feecalculator and on the current Form G-1055 before you send anything.

Timing

- **Preparation:** 2–6 months of evidence building and drafting. The part you control, and the part that decides the outcome.
- **Adjudication:** 15 business days with premium processing; otherwise months, varying by service center. Premium buys speed, not favor — the standard is identical.
- **After approval:** Form I-485 (adjustment of status, if you are in the U.S. and your date is current) or consular processing abroad.

The Visa Bulletin

Snapshot — July 2026 Visa Bulletin (EB-1)

Worldwide, Mexico, Philippines: Current — no wait for a visa number.

China: Final Action Date of June 1, 2023 (advanced two months).

India: Final Action Date of October 15, 2022 — retrogressed two months; the Department of State has warned of possible further retrogression before the fiscal year ends September 30, 2026.

Context: EB-2 India is unavailable for the remainder of FY2026 — a principal reason Indian-born founders and executives are moving toward EB-1A and filing early to secure a priority date.

A snapshot, not a forecast. Check travel.state.gov monthly — the bulletin is the most volatile fact in this guide.

Working with an attorney

This guide is designed to make you a better client, not to replace counsel. AiVass is not a law firm. What changes when you arrive prepared:

- You bring a criteria matrix, not a résumé — the engagement starts at strategy, not triage.
- Your evidence is already quantified and sourced, so billable hours go into argument, not chasing documents.

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- You can evaluate a quote intelligently: a firm that cannot explain its Step-2 theory of your case is not the firm.

The bottom line

You control preparation quality and filing date. You do not control the bulletin. Build well, file when ready, verify fees and policy the week you send.

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CHAPTER

11

Expert & B2B Annex

For attorneys, paralegals, legal-ops teams, and in-house mobility.

This chapter is operational. It assumes professional familiarity with the standard and focuses on repeatable workflow for business-profile EB-1A matters: intake, assessment, gap remediation, exhibit architecture, and pre-filing QC.

Intake questionnaire — business profile

Section	What to capture	Why it matters
Field definition	One-sentence field of endeavor; named peer group; fallback definition	Denominator of the entire case (Ch. 4)
Role & entity	Titles, dates, reporting lines, headcount, budget/P&L, decision rights; division vs. parent	Criterion 8, both prongs
Entity reputation	Funding rounds + investors + amounts; revenue/users; rankings; independent press	Criterion 8, distinguished reputation
Contributions	Each original artifact; adopters outside the firm; metrics; independent commentary	Criterion 5 — highest RFE exposure
Compensation	Base, bonus, equity; grants, 409A/round valuation; tax records; comparator market	Criterion 9 + equity bridge
Judging	Every invitation + completion proof; venue scale and selectivity	Criterion 4
Media	Full articles, author, date; outlet audience/circulation; paid-placement screen	Criterion 3
Awards & memberships	Selection criteria, bylaws, selectivity ratios; fee screen	Criteria 1 & 2
Recency	All recognition within the last 24 months	Sustained acclaim at Step 2

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Section	What to capture	Why it matters
Intent	Personal statement or business plan; contracts; U.S. commitments	Prong 2 and Prong 3

Criteria assessment matrix

Score each criterion twice — Step 1 (does the evidence objectively meet the regulatory terms?) and Step 2 (does it carry weight toward top-of-field?). A criterion can pass Step 1 and contribute almost nothing at Step 2.

#	Criterion	Step 1: met?	Step 2: weight	Gap / remediation	Owner	Due
8	Leading / critical role					
5	Original contributions					
9	High remuneration					
4	Judging					
3	Published material					
1	Awards					
2	Memberships					
6	Articles / comparable					

Exhibit index architecture

- Number by criterion: 3.1, 3.2 … 5.1, 5.2 … so any claim is verifiable in seconds.
- One cover sheet per exhibit: what it is, which criterion element it satisfies, what it proves.
- Certified translations for all foreign-language documents; full articles, never clippings.
- Web evidence captured with URL and access date visible in the capture.
- Order criterion sections by evidentiary strength — not regulatory order.

Pre-filing QC checklist

- ☐ Field of endeavor stated identically in the cover letter, every criterion section, and every letter.
- ☐ Every metric traced to a source document already in the exhibit index.

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☐ Criterion 8: reputation dossier for the correct entity (parent vs. division) — and a but-for outcome with a number.

☐ Criterion 5: a Significance Map per contribution, showing adoption beyond the employer.

☐ Criterion 9: comparator geography and occupation verified; methodology filed.

☐ Criterion 4: completion proof, not invitations only.

☐ Criterion 3: paid-placement screen documented; outlet credentials attached per item.

☐ Comparable evidence: "does not readily apply" argued per-occupation, mapped to a named criterion.

☐ Letters: independent-majority, distinct voices, each claim corroborated by a document.

☐ Recency: documented recognition within the last 24 months.

☐ Fees verified on the current G-1055; Asylum Program Fee tier correct.

☐ Policy Manual updates page checked within 30 days of filing.

RFE risk register — business profiles

Criterion 8: "organization not shown distinguished" · "role not shown leading or critical." Remedy: third-party dossier + quantified but-for outcome.

Criterion 5: "originality conceded; major significance not established." Remedy: adoption beyond employer, named adopters, independent commentary.

Criterion 9: "comparator not appropriate." Remedy: file the survey methodology and justify geography/occupation.

Criterion 3: "material not about the beneficiary" · "outlet not major." Remedy: cover sheets with outlet metrics.

Final merits: "meets criteria but record does not establish top of field." Remedy: peer-group definition, comparatives, recency, independent letters.

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CHAPTER

12

Myths, Red Flags & Your Self-Assessment

Score the record you have. Then build the record you need.

Eight myths that keep qualified founders from filing

The myth	The reality
"EB-1A is only for scientists and Nobel winners."	Business is one of the five statutory fields. The regulation asks for "lesser" nationally recognized awards — and awards are just 1 of 10 criteria.
"I need a U.S. employer to sponsor me."	No job offer is required. You self-petition. You must intend to continue in your field.
"My company's fame is my fame."	The organization's reputation is one element of one criterion. Your role and your contributions are separate proofs.
"Revenue growth alone proves extraordinary ability."	Revenue is evidence of impact. Major significance requires impact on the field, beyond your employer.
"More documents means a stronger case."	USCIS warns that voluminous documentation may not be persuasive. Curate ruthlessly.
"Trade shows count as artistic exhibitions."	Since October 2024, expressly not. Route trade-show presentations through comparable evidence to Criterion 6.
"I'm pre-revenue, so I can't qualify."	Significant VC, angel, or government funding is named by USCIS as a positive reputation factor; equity can bridge to Criterion 9.
"An approved O-1 means an approved EB-1A."	A prior O-1 is "a relevant consideration … not determinative." The immigrant standard is higher.

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Ten red flags to fix before you file

- ☐ Any award, membership, or media placement you or your company paid for.
- ☐ A title claimed without scope data — reports, budget, authority, duration.
- ☐ Impact described only inside your own company.
- ☐ "Transformed," "revolutionized," "significantly improved" with no number attached.
- ☐ Home-country salary compared to U.S. benchmarks, or vice versa.
- ☐ Recommendation letters that share phrasing, structure, or rhythm.
- ☐ A Criterion 7 claim built on a conference booth or product demo.
- ☐ A field of endeavor so narrow the peer group looks constructed.
- ☐ A criterion claimed on a single thin item, purely to reach three.
- ☐ No documented recognition within the last 24 months.

Case-positioning questions

Answer these in writing before you draft anything. If an answer has no number and no source, that is your next 90 days.

1. What did you create that people outside your company adopted — and what is the number?
2. Which division's distinguished reputation can you prove with third-party evidence?
3. What did your organization achieve that it would not have achieved but for you, specifically?
4. Who has published something substantial about your work — not your funding round?
5. What have you judged, and can you prove you completed it?
6. Where does your total compensation sit against the right survey, at the right percentile?
7. What has recognized you in the last 24 months?
8. If an officer asked you to name the top 3% of your field, could you? Are you among them, and why?

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The self-assessment scorecard

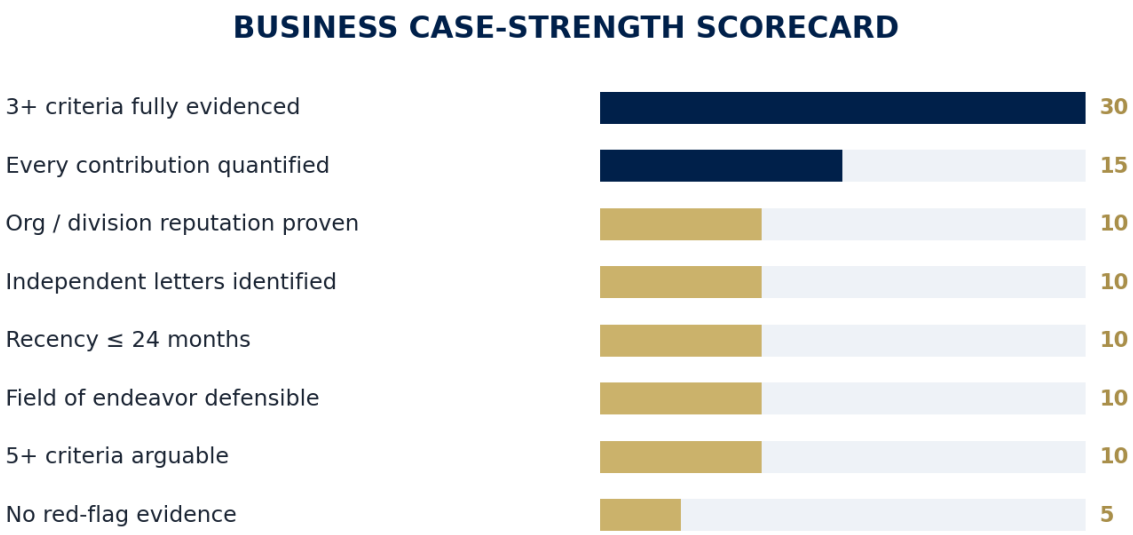


Figure 12.1 — Score honestly. If the document is not in your folder, it does not exist.

Component	Points	Your score
Three or more criteria fully evidenced (documents in hand)	30	
Every contribution claim carries a number and a source	15	
Organization or division reputation proven by third parties	10	
Six to eight letter writers identified, independent-majority	10	
Documented recognition within the last 24 months	10	
Field of endeavor defensible and stress-tested	10	
Five or more criteria arguable	10	
No red-flag evidence in the file	5	
Total	100	

Score	Where you stand	What to do next
75–100	Strong. Anchors evidenced, final-merits story intact.	Assemble exhibits and seek professional review. Your remaining work is curation and narrative.

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Score	Where you stand	What to do next
50–74	Buildable. The foundation is real; the proof has gaps.	Run the 90/180-day sprint (Chapter 9) against your weakest criteria. Do not file yet.
30–49	Early. Genuine achievement, insufficient external acclaim.	Spend 12–24 months building acclaim deliberately: judging, trade press, memberships, adoption evidence. Evaluate EB-2 NIW in parallel with counsel.
Below 30	Not yet.	This is information, not a verdict. Build the record, or discuss other categories with an attorney.

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Where to Go From Here

This field guide sits inside the AiVass EB-1A library. Each companion product goes deep on one stage of the build.

Product	Best for	What it does
EB-1A Master Guide	Everyone	The full legal framework and all ten criteria — the foundation of this series.
Eligibility Self-Assessment Workbook	Beginners	Extends Chapter 12 into a full scored diagnostic with decision paths.
Evidence Mapping Workbook	DIY applicants	Turns the criteria masterclasses into a working evidence-to-criteria system.
Field of Endeavor Definition Guide	Professionals	Drills Chapter 4's formula until your definition is defensible.
Recommendation Letter Toolkit	Applicants & lawyers	Briefing memos, independence hierarchy, corroboration mapping.
Personal Statement Framework	Applicants	Structures intent, future U.S. work, and national benefit.
Petition Assembly Checklist	DIY applicants	Chapter 11's QC pass, exhibit by exhibit.
100 AI Prompts for EB-1A	Everyone	The prompt library for inventory, mapping, gap-scan, and quantification.
Law Firm Toolkit (B2B)	Immigration firms	Intake, criteria matrices, RFE risk register, team workflow at volume.

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Sources & Verification

Every legal statement in this guide traces to a primary authority below. All sources were accessed and verified on **July 8, 2026**. Practitioner commentary, where it informed context, is identified as secondary and non-authoritative.

Source	Publisher	Authority	What it governs here
USCIS Policy Manual, Vol. 6, Part F, Ch. 2 — Extraordinary Ability	USCIS	Primary — agency guidance	Eligibility, the ten criteria, comparable evidence, two-step analysis, final merits, letters, startup funding as reputation factor.
8 C.F.R. § 204.5(h) and § 204.5(g)(1)	GPO / NARA	Primary — regulation	Definition of extraordinary ability, the ten criteria, comparable evidence, self-petition, employer-letter requirement.
INA § 203(b)(1)(A) · 8 U.S.C. § 1153(b)(1)(A)	U.S. Congress	Primary — statute	The three prongs: acclaim, continuing work, substantial benefit.
Employment-Based Immigration: First Preference EB-1 · uscis.gov	USCIS	Primary — agency	Self-petition confirmation; no PERM requirement.
Form I-140 page & instructions · Fee Schedule G-1055 · Fee Calculator	USCIS	Primary — agency	Filing mechanics, fees, Asylum Program Fee tiers, payment methods.
Policy Alerts, Sept. 12, 2023 and Oct. 2, 2024	USCIS	Primary — policy	Comparable evidence and final-merits factors; team awards; past memberships; published material; "artistic" exhibitions.
Kazarian v. USCIS, 596 F.3d 1115 (9th Cir. 2010)	9th Circuit	Primary — judicial	The two-step evidentiary analysis applied nationwide.
Visa Bulletin, July 2026	U.S. Dep't of State	Primary — agency	Priority dates and retrogression. Volatile: re-check monthly.
17 U.S.C. § 105 · Georgia v. Public.Resource.Org (2020)	Congress / SCOTUS	Primary	Public-domain status of U.S. government works and legal edicts.
Immigration law-firm alerts and practitioner commentary (2024–2026)	Various	Secondary — non-authoritative	Context and cross-confirmation only. Never the basis of a legal statement in this guide.

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Final reminder

This guide is educational. It is not legal advice, and AiVass LLC is not a law firm. Before filing, have a licensed U.S. immigration attorney review your petition, and verify every fee, date, and policy statement at uscis.gov. Guidance changes; your case deserves current law.

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